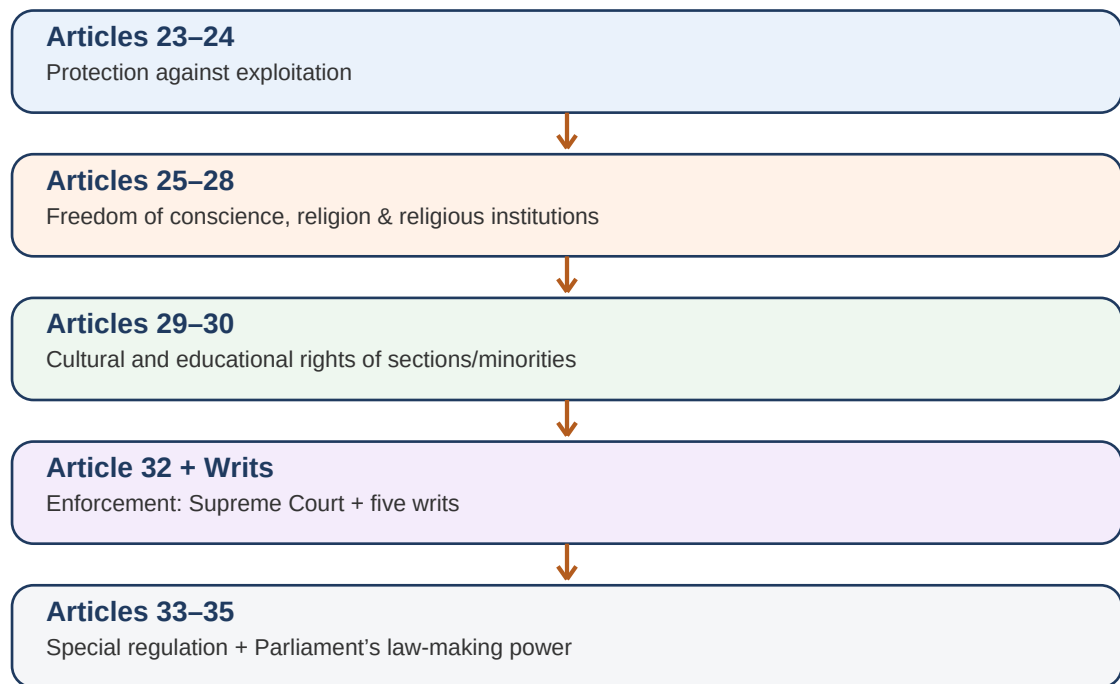


Articles 23–35 & Writs

Quick Revision Notes

Use this PDF for last-mile revision: definitions, article-wise hooks, writs table, prelims traps, and mains-ready points.



Exam logic: Rights → Exceptions → Enforcement → Limits

Syllabus Anchor: Indian Polity and Governance; Indian Constitution; Rights Issues; Judiciary and enforcement of Fundamental Rights.

Best use: Revise once after concept learning, then solve PYQs/MCQs and write one short answer on enforcement of Fundamental Rights.

1. One-Page Article Map

Core sequence: 23–24 = Exploitation | 25–28 = Religion | 29–30 = Culture/Education | 32 = Remedies | 33–35 = Special rules + legislative power.

Article	Core Protection	UPSC Revision Point
23	Prohibits trafficking, begar, and forced labour.	Applies against State and private persons; compulsory public service is allowed if non-discriminatory.
24	Prohibits employment of children below 14 years in factories, mines, and hazardous employment.	Connect with child dignity, labour reforms, and education; do not overextend to all work without qualification.
25	Freedom of conscience and free profession, practice and propagation of religion.	Subject to public order, morality, health and other Fundamental Rights.
26	Religious denominations may manage religious affairs.	Applies to denominations; subject to public order, morality and health.
27	No compulsion to pay taxes for promotion of a particular religion.	Tax for religious promotion is barred; fee for administration/maintenance may be different.
28	Rules on religious instruction in educational institutions.	Distinguish institutions wholly maintained by State funds from aided or trust-based institutions.
29	Protection of interests of minorities/sections with distinct language, script or culture.	Available to any section of citizens, not only minorities.
30	Minorities' right to establish and administer educational institutions.	Covers religious and linguistic minorities; administration does not mean complete immunity from regulation.
32	Right to move Supreme Court for enforcement of Fundamental Rights.	Dr. Ambedkar called it the heart and soul of the Constitution; itself a Fundamental Right.
33	Parliament may modify FR application to armed forces etc.	Purpose: discipline and proper discharge of duties.
34	Restriction/indemnity during martial law in an area.	Parliament may indemnify acts done in connection with maintenance/restoration of order.
35	Parliament's exclusive power to make laws for specified FR matters.	Centralizes law-making for matters like Article 16(3), 32(3), 33, 34 and offences under Part III.

Recall Hook: 23–24 save body, 25–30 save belief and identity, 32 saves rights, 33–35 regulate enforcement.

2. Writs: Fast Revision Table

A writ is a constitutional remedy issued by the Supreme Court under Article 32 and by High Courts under Article 226. For UPSC, focus on meaning, purpose, and limits.

Writ	Literal/Basic Meaning	Issued For	Exam Trap
Habeas Corpus	Produce the body	Protection against illegal detention.	Cannot be used when detention is lawful under valid authority.
Mandamus	We command	To compel a public authority to perform a public/statutory duty.	Generally not issued against private persons for purely private duties.
Prohibition	Stop proceeding	Higher court prevents lower court/tribunal from exceeding jurisdiction.	Preventive: issued before final order.
Certiorari	To be certified/quashed	Higher court quashes order of lower court/tribunal for jurisdictional or legal error.	Corrective: usually after order is passed.
Quo Warranto	By what authority?	Questions illegal holding of a public office.	Can be sought by any interested person; office must be public and substantive.

3. Article 32 vs Article 226

Basis	Article 32	Article 226
Court	Supreme Court	High Court
Nature	Fundamental Right in itself	Constitutional power of High Courts
Scope	Enforcement of Fundamental Rights	Fundamental Rights + other legal rights
Territorial reach	Generally throughout India in constitutional jurisdiction	Within High Court's territorial jurisdiction, subject to cause of action principles
UPSC takeaway	Direct constitutional remedy for FRs	Wider in scope but regionally limited

Prelims Shortcut: Prohibition prevents; Certiorari cures/quashes.

4. Religion, Culture and Education: Concept Clarity

Articles 25–30 protect pluralism, but they are not absolute. UPSC commonly tests the limitation clauses and the difference between individual, denominational, sectional and minority rights.

Cluster	Who is Protected?	Right	Limitations / Caveat
Article 25	Individuals	Freedom of conscience and religion	Subject to public order, morality, health and other FRs; State may regulate secular activities linked to religion.
Article 26	Religious denominations	Manage religious affairs, property and institutions	Subject to public order, morality and health.
Article 27	Taxpayers	Protection from religious taxation	Bar is on tax for promotion/maintenance of a particular religion.
Article 28	Students in institutions	Rules on religious instruction	Depends on whether institution is wholly State-funded, State-recognized, aided, or trust/endowment-based.
Article 29	Any section of citizens	Conserve language, script, culture	Not confined only to minorities.
Article 30	Religious/linguistic minorities	Establish and administer educational institutions	Reasonable regulation for standards, transparency and excellence may be valid.

5. Common Confusions to Fix

Confusion	Correction
Propagation under Article 25 means right to convert others.	Propagation means spreading/explaining one's faith; forced or fraudulent conversion is not protected.
Article 29 is only for minorities.	Article 29 protects any section of citizens with distinct language, script or culture.
Minority institutions are fully outside regulation.	Article 30 protects administration, but reasonable academic and regulatory standards can apply.
Article 27 bars all State spending connected with religion.	It bars compulsory tax for promotion/maintenance of a particular religion; secular administration/heritage-related spending may stand on different footing.

6. Prelims Traps and Mains Use

Trap Area	What UPSC May Test	Safe Revision Response
Article 23	Whether it applies only against the State	No. It can operate against private exploitation too.
Article 24	Overbroad statement that all child work is prohibited	Constitutional text specifically bars below-14 employment in factories, mines and hazardous employment.
Article 25	Whether religion freedom is absolute	No. It is subject to public order, morality, health and other FRs.
Writs	Prohibition vs Certiorari	Prohibition = before final order; Certiorari = quashing after legal/jurisdictional error.
Article 32	Whether only High Courts can issue writs	Supreme Court under Article 32; High Courts under Article 226.
Article 35	Which legislature has power	Parliament has exclusive power for specified Part III matters.

Mains Answer-Ready Points

- **Human dignity:** Articles 23–24 convert social justice into enforceable constitutional protection.
- **Pluralism:** Articles 25–30 balance individual belief, group identity, minority autonomy and social reform.
- **Rule of law:** Writs prevent arbitrary detention, jurisdictional excess, illegal orders and unlawful occupation of public office.
- **Judicial remedies:** Article 32 makes Fundamental Rights practically enforceable, not merely declaratory.
- **Constitutional balance:** Articles 33–35 show that rights operate with institutional needs such as discipline, emergency order and uniform legislation.

7. 10-Minute Revision Drill

Minute	Task
0–2	Recite article clusters: 23–24, 25–28, 29–30, 32, 33–35.
2–4	Write one-line meaning of each writ.
4–6	Revise 3 limits: Article 25 limits, Article 26 limits, Article 30 regulation caveat.
6–8	Solve 5 prelims-style statements mentally: absolute/only/minority/private/public wording.
8–10	Draft a 5-point mains skeleton on “enforcement of Fundamental Rights”.

Final Hook: Rights matter only when remedies exist. Article 32 and writs are the bridge between constitutional promise and enforceable reality.